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STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

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Bill Owens
Governor

Greg E. Walcher
Executive Director

Ronald W. Cattany
Acting Division Director

December 17, 2002 ✓

Mr. John Lohr
CEMEX, Inc. ✓
P.O. Box 529
Lyons, CO 80540

Re: Larimer County Quarry, Permit No. M-1977-341, Financial Warranty Release Denial, Revision No. SL-1 ✓

Dear Mr. Lohr:

On December 16, 2002 the Division of Minerals and Geology considered your request for a financial warranty release. The Division found that reclamation had not been accomplished at this site and denied this request. Please review the inspection report dated December 6, 2002 for the specific reasons for the financial warranty release denial. In addition, if you have past due annual fees or unpaid civil penalties, your financial warranty cannot be released.

If you have any questions, please contact me.

Sincerely,

Erica S. Crosby
Environmental Protection Specialist

Cc: Carl Mount, Division of Minerals and Geology